

24STCV34421 24STCV34421

County: los-angeles

Division: Civil Law and Motion

Department: 406

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Case Number: 24STCV34421 Hearing Date: June 26, 2026 Dept: 406

MICHAEL THOMAS,

Plaintiff,

v.

VOLKSWAGEN GROUP OF AMERICA, INC., et
al.,

Defendants.

Case No.: 24STCV34421

Hearing Date: June 26, 2026

[TENTATIVE]

order RE:

defendant volkswagen group of america,
inc.'s motion to compel deposition

BACKGROUND

On December 30, 2024, Plaintiff

Michael Thomas filed this action against Defendants Volkswagen Group of America, Inc. (VGA) and Volkswagen of Downtown Los Angeles. The complaint asserts claims for violation of the Song-Beverly Act, breach of warranty, negligent repair, and fraudulent inducement.

On May 26, 2026, Defendant VGA filed the instant motion to compel Plaintiff's deposition. Plaintiff filed an opposition on June 12, 2026.

LEGAL STANDARD

"If, after service of a deposition notice, a party to the action . . . without having served a valid objection under Section 2025.410, fails to appear for examination . . . or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document ... described in the deposition notice." (Code Civ. Proc., § 2025.450(a).)

DISCUSSION

Defendant served various deposition notices for Plaintiff in January, February, and March of 2026. (Infante Decl. ¶¶ 3.) Plaintiff did not appear, and his counsel has been unable to reach him. Thus, an order compelling the deposition is warranted. Plaintiff requests a continuance of the motion and opposes sanctions. However, a continuance is not warranted, and Defendant does not request sanctions.

CONCLUSION

Defendant VGA's motion to compel deposition is GRANTED. Plaintiff shall appear for deposition within 20 days of today.